HIGH ANTI-CORRUPTION COURT
RULING
IN THE NAME OF UKRAINE

12 June 2026 Kyiv

Investigating Judge of the High Anti-Corruption Court (HACC) Dubas V.M. (hereinafter – the investigating judge or the court), having received the complaint of attorney Miftakhutdinov V.S. in the interests of Boguslayev O.V. against the ruling of the prosecutor of the Prosecutor General's Office Safaryan O.E. on refusal to grant the motion in criminal proceeding No. 22017000000000272 dated 6 July 2017,

ESTABLISHED:

1. Brief description of judicial proceeding.

On 11 June 2026, the complaint of attorney Vladyslav Serhiyovych Miftakhutdinov in the interests of Oleksandr Vyacheslavovych Boguslayev (hereinafter – the complainant) was received by the HACC against the prosecutor's ruling on refusal to grant the motion, for the consideration of which, pursuant to Article 35 of the Criminal Procedure Code of Ukraine (hereinafter – the CPC) and the report on the transfer of the court case to the previously determined composition of the court, investigating judge Dubas V.M. was designated.

2. Brief statement of the complaint.

The complainant in the complaint requested: *«1. To grant the complaint of the defense counsel of Boguslayev O.V. – attorney Miftakhutdinov V.S., against the inactivity of the prosecutor of the Prosecutor General's Office Oleksandr Safaryan, consisting in failure to adopt a decision on determining another investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 6 July 2017. 2. To obligate the prosecutor of the Prosecutor General's Office Oleksandr Safaryan to fulfill the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine the investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 6 July 2017 by the National Anti-Corruption Bureau of Ukraine. 3. To notify of the date, time, and place of consideration of this complaint at the address: ….»,*

which was substantiated, in particular, by the following:

«Investigators of the Main Investigation Directorate of the Security Service of Ukraine (hereinafter – MID SSU) conduct pre-trial investigation of Criminal Proceeding No. 22017000000000272 dated 6 July 2017 (hereinafter – the Criminal Proceeding, Annex 3).

Procedural guidance in the Criminal Proceeding is exercised by prosecutors of the Prosecutor General's Office.

The senior prosecutor of the group of prosecutors is prosecutor Oleksandr Safaryan (Annex 4).

Pre-trial investigation of the Criminal Proceeding is conducted regarding Boguslayev V.O. and Boguslayev O.V. on the grounds of commission of crimes, in particular, provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC.

At the same time, the crimes incriminated by the investigation against Boguslayev V.O. were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25 May 2006–29 August 2019.

Thus, according to the investigation's version, the misappropriation of property in especially large amounts (Part 5 of Article 191 of the CC) was committed by a person who at that time was a People's Deputy of Ukraine.

In addition, the amount of damage caused as a result of the alleged commission of the criminal offense provided for by Part 5 of Article 191 of the CC significantly exceeds the threshold established by paragraph 2 of Part 5 of Article 216 of the CPC.

Considering that (1) the Criminal Proceeding is conducted on the fact of commission of criminal offenses provided for, in particular, by Part 5 of Article 191 and Part 3 of Article 209 of the CC of Ukraine, (2) the crimes incriminated by the investigation against Boguslayev V.O. were allegedly committed during the period of his tenure as a People's Deputy of Ukraine, and (3) the amount of damage caused by the alleged commission of the act under Part 5 of Article 191 of the CC exceeds the threshold established by paragraph 2 of Part 5 of Article 216 of the CPC of Ukraine, – pre-trial investigation of the criminal proceeding belongs to the exclusive investigative jurisdiction of NABU.

Further investigation of Criminal Proceeding No. 22017000000000272 by investigators of the MID SSU is unlawful and must be transferred to NABU ...

Moreover, on 29 May 2026, the defense counsel applied to Oleksandr Safaryan with a Motion on determination of investigative jurisdiction of the criminal proceeding by another pre-trial investigation body (Annex 9).

On 3 June 2026, I received the Prosecutor's Ruling dated 3 June 2026, by which the prosecutor refused to grant the specified Motion. At the same time, the prosecutor failed to properly take into account the exclusive grounds clearly and plainly indicating that the Criminal Proceeding is outside the investigative jurisdiction of the MID SSU (Annex 10).

That is, the prosecutor failed to fulfill his duty, did not perform any actions to eliminate the unlawfulness of the investigative jurisdiction of the Criminal Proceeding, and did not transfer the conduct of its pre-trial investigation to NABU. Thereby, he committed inactivity and continues to commit it. Thus, prosecutor Oleksandr Safaryan was obliged to determine the investigative jurisdiction of the Criminal Proceeding by NABU and issue a corresponding ruling».

3. Substantiation of the court's position.

3.1. The court established the following circumstances:

On 6 July 2017, information was entered into the Unified Register of Pre-trial Investigations (URPI) and criminal proceeding No. 22017000000000272 was initiated, in which pre-trial investigation is currently conducted by investigators of the Main Investigation Directorate of the Security Service of Ukraine (MID SSU) for the following 28 episodes of indications of criminal offenses provided for by: 1) Part 1 of Article 14 / Article 113 of the CC (since 6 July 2017), 2) Part 3 of Article 212 of the CC (since 4 August 2017), 3) Part 2 of Article 209 of the CC (since 4 August 2017), 4) Part 1 of Article 111 of the CC (since 15 July 2019), 5) Part 3 of Article 15 / Part 4 of Article 190 of the CC (since 21 August 2020), 6) Part 4 of Article 190 of the CC (since 9 September 2020), 7) Part 4 of Article 358 of the CC (since 9 September 2020), 8) Part 3 of Article 15 / Part 4 of Article 190 of the CC (since 23 November 2020), 9) Part 2 of Article 364 of the CC (since 3 December 2020), 10) Part 1 of Article 15 / Article 113 of the CC (since 20 August 2020), 11) Part 1 of Article 333 of the CC (since 25 January 2021), 12) Part 2 of Article 233 of the CC (since 16 March 2021), 13) Part 1 of Article 111 of the CC (since 18 March 2021), 14) Part 2 of Article 11 [sic] of the CC (since 25 June 2022), 15) Part 4 of Article 111-1 of the CC (since 15 June 2022), 16) Part 4 of Article 111-1 of the CC (since 15 June 2022), 17) Part 4 of Article 111-1 of the CC (since 28 September 2022), 18) Part 2 of Article 28 / Part 4 of Article 111-1 of the CC (since 21 October 2022), 19) Part 2 of Article 28 / Part 4 of Article 111-1 of the CC (since 21 October 2022), 20) Part 1 of Article 114-1 of the CC (since 9 December 2022), 21) Part 2 of Article 28 / Part 1 of Article 258-3 of the CC (since 9 December 2022), 22) Part 3 of Article 209 of the CC (since 29 December 2022), under which Oleksandr Vyacheslavovych Boguslayev and Vyacheslav Oleksandrovych Boguslayev were notified of suspicion, under such brief statement of circumstances indicating the commission of a criminal offense: *«Boguslayev V.O. by prior conspiracy with Boguslayev O.V., Kunayev Yu.V., Kononenko P.I. and his son – Kononenko A.P. during the period from 2014 to 2022 acquire, possess, use and dispose of property regarding which factual circumstances indicate its acquisition by criminal means (in particular by providing organizational and other assistance to the activities of a terrorist organization by providing funds to legal entities whose property is indirectly controlled by terrorists, as well as to legal entities and individuals acting on behalf of or on the instructions of the specified persons), including by conducting financial transactions, entering into transactions with such property, or transferring, changing the form (transformation) of such property».* 23) Part 1 of Article 333 of the CC (since 27 February 2023), 24) Part 1 of Article 333 of the CC (since 20 March 2023), 25) Part 1 of Article 333 of the CC (since 11 October 2023), 26) Part 1 of Article 111-2 of the CC (since 29 April 2023), 27) Part 2 of Article 28 / Article 219 of the CC (since 13 May 2024), 28) Part 5 of Article 191 of the CC (since 20 May 2024), under which Vyacheslav Oleksandrovych Boguslayev was notified of suspicion under such brief statement of circumstances indicating the commission of a criminal offense: *«Unidentified officials of JSC 'Motor Sich', who acted as a group of persons by prior conspiracy with persons exercising effective control over the enterprise – Boguslayev V.O., Boguslayev O.V., by abusing their official position committed in their interests embezzlement of property of the enterprise, thereby causing it property damage in especially large amounts».*

On 25 April 2025, Oleksandr Vyacheslavovych Boguslayev was notified by investigator of the MID SSU Romashkin D.S. of suspicion of committing a criminal offense provided for by Part 3 of Article 209 of the CC, namely of committing, by prior conspiracy by a group of persons, actions aimed at concealing and disguising the illicit origin of funds obtained as a result of committing a socially dangerous unlawful act preceding the legalization (laundering) of proceeds, transfer, change of their form (transformation), as well as the use of funds or other property obtained as a result of committing a socially dangerous unlawful act preceding the legalization (laundering) of proceeds in especially large amounts, since *«Boguslayev V.O. and Boguslayev O.V. in an unidentified place by prior conspiracy by a group of persons committed unlawful concealment of the sources of origin of 650 million US dollars, disguised under*

documentary appearance of the lawful sale of shares of the enterprise JSC 'Motor Sich', which had previously been unlawfully and illegally acquired by Boguslayev V.O., which facilitated terrorist activity, which according to the official exchange rate of the National Bank of Ukraine as of 2 August 2016 amounted to 16,135,080,000 hryvnias, and therefore exceeds eighteen thousand tax-free minimum incomes of citizens and is an especially large amount of legalization (laundering) of proceeds obtained by criminal means».

On 25 April 2025, Vyacheslav Oleksandrovych Boguslayev was notified by investigator of the MID SSU Romashkin D.S. of suspicion of committing a criminal offense provided for by Part 5 of Article 191 of the CC, namely of misappropriation of another's property through abuse by an official of his official position, in especially large amounts, since *«in the period from 17 June 1994 to 1 September 2014, non-resident companies and legal entities in Ukraine controlled by Boguslayev V.O., as actual beneficial owner (the owner of which were other non-resident companies), formed a block of shares of JSC 'Motor Sich' in the amount of 1,038,996 shares, which constitutes 50% of the total number of issued shares, namely: Business House Helena A.G. — 359,727 (17.3113%), LLC 'Motor-Interkoms' — 201,565 (9.69%), PrJSC 'TD 'Olena' — 193,220 (9.2984%), Granum Corporation — 192,665 (9.2717%), Enfields Trade & Capital Corp. — 64,733 (3.1152%), Waldo Trade Ltd. — 27,086 (1.3035%)»* and of committing a criminal offense provided for by Part 3 of Article 209 of the CC, namely, by prior conspiracy by a group of persons, actions aimed at concealing and disguising the illicit origin of funds obtained as a result of committing a socially dangerous unlawful act preceding the legalization (laundering) of proceeds, transfer, change of their form (transformation), as well as the use of funds or other property obtained as a result of committing a socially dangerous unlawful act preceding the legalization (laundering) of proceeds in especially large amounts, since *«Boguslayev V.O. and Boguslayev O.V. in an unidentified place by prior conspiracy by a group of persons committed unlawful concealment of the sources of origin of 650 million US dollars, disguised under the documentary appearance of the lawful sale of shares of the enterprise JSC 'Motor Sich', which had previously been unlawfully and illegally acquired by Boguslayev V.O., which facilitated terrorist activity, which according to the official exchange rate of the National Bank of Ukraine as of 2 August 2016 amounted to 16,135,080,000 hryvnias, and therefore exceeds eighteen thousand tax-free minimum incomes of citizens and is an especially large amount of legalization (laundering) of proceeds obtained by criminal means».*

On 29 May 2026, the complainant sent to the Prosecutor General's Office a motion in criminal proceeding No. 22017000000000272, where he requested: *«To fulfill the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine the investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 6 July 2017 by the National Anti-Corruption Bureau of Ukraine, as the body to which it is subject to investigative jurisdiction pursuant to paragraphs 1, 2 of Part 5 of Article 216 of the CPC of Ukraine».*

On 3 June 2026, by ruling of the prosecutor of the first department of the directorate for organization and procedural guidance of pre-trial investigation and support of public prosecution in criminal proceedings of security bodies of the Department for Supervision over Compliance with Laws by Security Bodies of the Prosecutor General's Office Safaryan O.E., the complainant was refused the grant of the motion dated 29 May 2026 on determining the investigative jurisdiction of this criminal proceeding by the National Anti-Corruption Bureau of Ukraine, since:

«The Prosecutor General's Office received a motion dated 29 May 2026 No. 20260529/1 of attorney Vladyslav Miftakhutdinov in the interests of Oleksandr Boguslayev in criminal proceeding No. 22017000000000272 on determination by the prosecutor of the investigative jurisdiction of this criminal proceeding by the National Anti-Corruption Bureau of Ukraine.

During its consideration, it was established that investigators of the Main Investigation Directorate of the Security Service of Ukraine on 6 July 2017 initiated pre-trial investigation in criminal proceeding No. 22017000000000272 on the grounds of a crime provided for by Article 113 of the CC of Ukraine, assigned to the investigative jurisdiction of investigators of security bodies.

During the investigation, investigators of security bodies detected a number of other crimes committed both by officials of JSC 'Motor-Sich' and by other persons, and prosecutors made decisions on joinder under twenty-seven episodes of criminal activity initiated under various parts of Articles 111, 112, 113, 114-1, 190, 191, 209, 212, 233, 258-3, 219, 333, 358, 364 of the CC of Ukraine.

Following the investigation of these criminal offenses, from 2021 to 2024, charges were brought against Volodymyr Pryadko under Article 367 of the CC of Ukraine, Petro Zaruba under Article 258-3 of the CC of Ukraine, Petro Kononenko under Article 258-3 of the CC of Ukraine, Vyacheslav Boguslayev under Articles 111, 111-2, 114-1, 258-3 of the CC of Ukraine, and Oleh Dzyuba under Articles 111, 112, 258-3 of the CC of Ukraine, with subsequent severance of pre-trial investigation materials regarding these persons and adoption of final decisions on referral to court.

Investigators of the Main Investigation Directorate of the Security Service of Ukraine since 24 January 2024 conduct pre-trial investigation of the specified criminal proceeding as part of a joint investigation team

(JIT) with the French Republic and the Principality of Monaco on the facts of legalization on the territory of the European Union of 650 million US dollars obtained by Oleksandr Boguslayev as a result of the sale of shares of JSC 'Motor Sich' unlawfully acquired by Vyacheslav Boguslayev.

On the basis of evidence obtained by the joint investigation team, Vyacheslav Boguslayev on 28 April 2025 was notified of suspicion of misappropriation of shares of JSC 'Motor Sich' in especially large amounts (Part 5 of Article 191 of the CC of Ukraine) with subsequent legalization (laundering) of proceeds from the unlawful sale of these shares to citizens of the PRC by prior conspiracy with his son Oleksandr Boguslayev (Part 3 of Article 209 of the CC of Ukraine), who was notified of suspicion by members of the JIT on 30 April 2025 under Part 3 of Article 209 of the CC of Ukraine on the territory of the Principality of Monaco.

Criminal offenses provided for by Part 5 of Article 191 of the CC of Ukraine and Part 3 of Article 209 of the CC of Ukraine were detected precisely during the investigation by investigators of security bodies of a number of criminal offenses within their investigative jurisdiction in criminal proceeding No. 22017000000000272.

In addition, in this same criminal proceeding, the Prosecutor General on 11 July 2019 had already adopted a decision to entrust the conduct of pre-trial investigation to investigators of the Main Investigation Directorate of the Security Service of Ukraine on the basis of Part 5 of Article 36 of the CPC of Ukraine due to its inefficiency.

Currently, pre-trial investigation is conducted not only regarding Vyacheslav Boguslayev and Oleksandr Boguslayev under Articles 191 and 209 of the CC of Ukraine, but also on the facts of commission of crimes provided for by various parts of Articles 111, 111-1, 111-2, 113, 114-1, 190, 191, 209, 212, 219, 233, 258-3, 333, 358, 364 of the CC of Ukraine.

Vyacheslav Boguslayev at the time of bringing charges against him under Articles 111-1, 112, 114-1, 258-3 of the CC of Ukraine and notification of suspicion under Articles 191, 209 of the CC of Ukraine did not have the status of a People's Deputy of Ukraine.

Completion of the commission of the criminal offense incriminated against Vyacheslav Boguslayev provided for by Article 191 of the CC of Ukraine, as well as commission of the criminal offense provided for by Article 209 of the CC of Ukraine, occurred after JSC 'Motor Sich' had completely left state ownership. Therefore, a decision on entrusting the conduct of pre-trial investigation in this criminal proceeding (which is adopted taking into account the provisions of the CPC of Ukraine on investigative jurisdiction) had already been adopted, grounds for determining another investigative jurisdiction have not been established.

Also, the Acting Prosecutor General on 30 September 2025 adopted a ruling resolving a dispute on investigative jurisdiction in this criminal proceeding, which was determined for investigators of security bodies – the Main Investigation Directorate of the Security Service of Ukraine.

At the same time, the attorney in the motion requests to determine investigative jurisdiction in the criminal proceeding. Such a decision is adopted in the form of a ruling and does not belong to investigative or procedural actions, to request the conduct of which the defense is entitled pursuant to the provisions of Article 220 of the CPC of Ukraine».

3.2. Pursuant to Part 1 of Article 24 of the CPC, everyone is guaranteed the right to appeal procedural decisions, actions or inactivity of the court, investigating judge, prosecutor, investigator in the manner provided for by this Code.

The procedure for appealing decisions, actions or inactivity of pre-trial investigation bodies or the prosecutor during pre-trial investigation is established by Articles 303–308 of the CPC.

Paragraphs 1–11 of Part 1 of Article 303 of the CPC determine an exhaustive list of decisions, actions or inactivity of an investigator, inquirer or prosecutor that may be appealed during pre-trial proceedings *(namely 1) inactivity of an investigator, inquirer, prosecutor consisting in failure to enter information about a criminal offense into the Unified Register of Pre-trial Investigations after receiving an application or report of a criminal offense, failure to return temporarily seized property in accordance with the requirements of Article 169 of this Code, as well as failure to perform other procedural actions that he is obliged to perform within the time limit established by this Code; 2) decision of an investigator, inquirer, prosecutor to suspend pre-trial investigation; 3) decision of an investigator, inquirer to close criminal proceedings – by the applicant, victim, his representative or legal representative; 4) decision of a prosecutor to close criminal proceedings and/or proceedings regarding a legal entity; 5) decision of a prosecutor, investigator, inquirer to refuse recognition as a victim; 6) decision, action or inactivity of an investigator, inquirer or prosecutor in applying security measures; 7) decision of an investigator, inquirer, prosecutor to refuse to grant a motion to conduct investigative (search) actions, covert investigative (search) actions; 8) decision of an investigator, inquirer, prosecutor to change the procedure of pre-trial investigation and extend it according to the rules provided for by Chapter 39 of this Code; 9-1) decision of a prosecutor to refuse to grant a complaint against failure to comply with reasonable time limits by an investigator, inquirer, prosecutor during pre-trial investigation; 10) notice of suspicion by an investigator, inquirer, prosecutor after the expiration of one month from the day of notification of a person of suspicion of committing a criminal misdemeanor or two months from the day of notification of a person of suspicion*

of committing a crime, but not later than closure by the prosecutor of criminal proceedings or referral to court of an indictment; 11) refusal of an investigator, inquirer, prosecutor to grant a motion to close criminal proceedings on the grounds provided for by paragraph 9-1 of Part 1 of Article 284 of this Code), and pursuant to Part 2 of Article 303 of the CPC, complaints against other decisions, actions or inactivity of an investigator, inquirer or prosecutor are not considered during pre-trial investigation and may be the subject of consideration during preparatory proceedings in court according to the rules of Articles 314–316 of this Code.

A systemic interpretation of these provisions indicates that the CPC provides for the right during pre-trial investigation to appeal to an investigating judge against not any inactivity or decision of an investigator, inquirer, prosecutor, but only those provided for by their direct duties, the specific deadline for performance of which is regulated by the CPC.

Parts 1, 2 of Article 220 of the CPC provide that motions of the defense, the victim and his representative or legal representative, the representative of a legal entity regarding which proceedings are conducted, for the performance of any procedural actions and, in cases established by this Code, of another person whose rights or legitimate interests are restricted during pre-trial investigation, or his representative, the investigator, inquirer, prosecutor are obliged to consider within a period of no more than three days from the moment of submission and grant them in the presence of appropriate grounds. The person who filed the motion is notified of the results of consideration of the motion. A motivated ruling is issued on full or partial refusal to grant the motion, a copy of which is handed to the person who filed the motion, and in case of impossibility of handing for objective reasons – sent to him.

Pursuant to Parts 1, 2, 6 of Article 223 of the CPC, investigative (search) actions are actions aimed at obtaining (collecting) evidence or verifying already obtained evidence in a specific criminal proceeding. Grounds for conducting an investigative (search) action are the presence of sufficient information indicating the possibility of achieving its purpose. An investigative (search) action carried out upon motion of the defense, the victim, the representative of a legal entity regarding which proceedings are conducted, is conducted with the participation of the person who initiated it and (or) his defense counsel or representative, except in cases where due to the specifics of the investigative (search) action this is impossible or such person has refused in writing to participate in it. During the conduct of such investigative (search) action, persons present who initiated it have the right to ask questions, express their proposals, remarks and objections regarding the procedure for conducting the relevant investigative (search) action, which are entered into the record.

The CPC contains no provisions regarding the grounds and procedure for consideration by an investigating judge of applications or complaints regarding the determination of investigative jurisdiction of a criminal proceeding by another pre-trial investigation body; therefore, resolving the issue raised in the complaint does not fall at all within the scope of powers of an investigating judge at the stage of pre-trial investigation.

Thus, complaints regarding an appeal against a prosecutor's ruling on refusal to determine the investigative jurisdiction of a criminal proceeding by another pre-trial investigation body do not fall under any ground for appealing inactivity or a decision or actions of an investigator, inquirer or prosecutor defined by paragraphs 1–11 of Part 1 of Article 303 of the CPC, and do not belong to the category of motions for performance of any procedural actions, since the latter include exclusively investigative (search) actions aimed at fulfilling the tasks of criminal proceedings defined by Article 2 of the CPC.

3.3. Article 3 of the Law of Ukraine "On the High Anti-Corruption Court" dated 7 June 2018 No. 2447-VIII establishes that the task of the High Anti-Corruption Court is the administration of justice in accordance with the principles and procedures of judicial proceedings determined by law for the purpose of protecting the individual, society and the state from corruption and related criminal offenses and judicial control over pre-trial investigation of these criminal offenses, observance of rights, freedoms and interests of persons in criminal proceedings, as well as resolving the issue of declaring assets unjustified and recovering them into state revenue in cases provided for by law, in accordance with the rules of civil procedure, as well as administration of justice in cases concerning the application of the sanction provided for by paragraph 1-1 of Part 1 of Article 4 of the Law of Ukraine "On Sanctions", in accordance with the rules of administrative procedure.

Article 4 of the same Law No. 2447-VIII provides that the High Anti-Corruption Court administers justice as a court of first and appellate instances in criminal proceedings regarding criminal offenses referred to its jurisdiction (substantive jurisdiction) by procedural law, as well as by exercising, in cases and in the manner determined by procedural law, judicial control over observance of rights, freedoms and interests of persons in such criminal proceedings, administers justice as a court of first and appellate instances in cases on declaring assets unjustified and recovering them into state revenue in accordance with the rules of civil procedure, administers justice as a court of first and appellate instances in cases concerning the application of the sanction provided for by paragraph 1-1 of Part 1 of Article 4 of the Law of Ukraine "On Sanctions", in accordance with the rules of administrative procedure; analyzes judicial statistics, studies and

generalizes judicial practice in criminal and other proceedings referred to its jurisdiction, informs the Supreme Court about the results of generalization of judicial practice and provides it with proposals for conclusions regarding draft legislative acts relating to the organization and activity of the High Anti-Corruption Court, special requirements for judges of this court and guarantees of their activity, as well as publishes them on its official website. Territorial jurisdiction of the High Anti-Corruption Court extends to the entire territory of Ukraine.

The legal grounds regarding the subject-matter jurisdiction of the HACC are determined by Article 33-1 of the CPC taking into account Article 216 of the CPC.

Pursuant to Article 33-1 of the CPC, criminal proceedings concerning corruption criminal offenses provided for in the note to Article 45 of the CC *(namely, such are considered criminal offenses provided for by Articles 191, 262, 308, 312, 313, 320, 357, 410, in case of their commission through abuse of official position, as well as criminal offenses provided for by Articles 210, 354, 364, 364-1, 365-2, 368–369-2 of this Code. Criminal offenses related to corruption, in accordance with this Code, are considered criminal offenses provided for by Articles 366-2, 366-3 of this Code)*, Articles 206-2, 209, 211, 366-2, 366-3 of the CC fall within the jurisdiction of the HACC, if at least one of the conditions provided for by paragraphs 1–3 of Part 5 of Article 216 of the CPC is present. Investigating judges of the HACC exercise judicial control over observance of rights, freedoms and interests of persons in criminal proceedings regarding criminal offenses referred to the jurisdiction of the HACC in accordance with Part 1 of this Article.

Part 5 of Article 216 of the CPC establishes that detectives of the NABU conduct pre-trial investigation of criminal offenses provided for by Articles 191, 206-2, 209, 210, 211, 354 (regarding employees of legal entities of public law), 364, 366-2, 366-3, 368, 368-5, 369, 369-2, 410 of the CC, if at least one of the following conditions is present:

1) the criminal offense was committed by: - the President of Ukraine whose powers have been terminated, a People's Deputy of Ukraine, the Prime Minister of Ukraine, a member of the Cabinet of Ministers of Ukraine, a first deputy and deputy minister, a member of the National Council of Ukraine on Television and Radio Broadcasting, the National Commission for State Regulation of Financial Services Markets, the National Securities and Stock Market Commission, the Antimonopoly Committee of Ukraine, the Head of the State Committee for Television and Radio Broadcasting of Ukraine, the Head of the State Property Fund of Ukraine, his first deputy and deputy, a member of the Central Election Commission, the Governor of the National Bank of Ukraine, his first deputy and deputy, the Head of the National Agency on Corruption Prevention, his deputy, the Director of the Economic Security Bureau of Ukraine, his deputy, a member of the Council of the National Bank of Ukraine, the Secretary of the National Security and Defense Council of Ukraine, his first deputy and deputy, the Permanent Representative of the President of Ukraine in the Autonomous Republic of Crimea, his first deputy and deputy, an advisor or assistant to the President of Ukraine, the Chairman of the Verkhovna Rada of Ukraine, the Prime Minister of Ukraine; - a civil servant whose position belongs to category "A"; - a deputy of the Supreme Council of the Autonomous Republic of Crimea, a deputy of an oblast council, city council of the cities of Kyiv and Sevastopol, an official of local self-government whose position is assigned to the first and second categories of positions; - a judge (except judges of the High Anti-Corruption Court), a judge of the Constitutional Court of Ukraine, a juror (during the performance by him of duties in court), the Chairman, Deputy Chairman, member, inspector of the High Council of Justice, the Chairman, Deputy Chairman, member, inspector of the High Qualification Commission of Judges of Ukraine; - prosecutors of prosecution authorities specified in paragraphs 1–4, 5–11 of Part 1 of Article 15 of the Law of Ukraine "On the Prosecution Service"; - a person of senior command staff of the state penal service, civil defense bodies and units, senior staff of the National Police, a customs service official who has been awarded the special rank of state advisor of customs service of III rank and above, an official of state tax service authorities who has been awarded the special rank

of state advisor of tax service of III rank and above; - a serviceman of senior officer staff of the Armed Forces of Ukraine, the Security Service of Ukraine, the State Border Guard Service of Ukraine, the State Special Transport Service, the National Guard of Ukraine and other military formations established in accordance with the laws of Ukraine; - the head of a large business entity in whose charter capital the share of state or communal ownership exceeds 50 percent;

2) the size of the subject of a criminal offense provided for by Articles 354 (regarding employees of legal entities of public law), 368, 369, 369-2 of the Criminal Code of Ukraine exceeds by five hundred or more times the subsistence minimum for able-bodied persons established by law at the time of committing the criminal offense, as well as the subject of a criminal offense or the amount of damage caused in criminal offenses provided for by Articles 191, 206-2, 209, 210, 211, 364, 410 of the Criminal Code of Ukraine exceeds by five thousand or more times the subsistence minimum for able-bodied persons established by law at the time of committing the criminal offense (if the criminal offense was committed by an official of a state body, law enforcement body, military formation, local self-government body, business entity in whose charter capital the share of state or communal ownership exceeds 50 percent);

3) the criminal offense provided for by Article 369, Part 1 of Article 369-2 of the Criminal Code of Ukraine was committed regarding an official defined in Part 4 of Article 18 of the Criminal Code of Ukraine or in paragraph 1 of this Part.

Part 2 of Article 38 of the CPC establishes that pre-trial investigation is conducted by: 1) investigative units of: a) National Police bodies; b) security bodies; d) State Bureau of Investigation bodies; 2) detective unit, internal control unit of the National Anti-Corruption Bureau of Ukraine; 3) detective units of the Economic Security Bureau of Ukraine.

That is, the CPC defines 5 pre-trial investigation bodies that have different investigative jurisdiction determined by Article 216, by which is understood the statutory criteria of a criminal proceeding that determine its belonging to the subject matter of activity of one or another investigative body, and the very existence of subject-matter investigative jurisdiction is intended to organize the activity of investigative bodies in investigating various criminal offenses, optimize state resources by avoiding duplication of powers of different bodies, etc.

Pursuant to Part 1 of Article 216 of the CPC, investigators of National Police (NP) bodies conduct pre-trial investigation of criminal offenses provided for by the law of Ukraine on criminal liability, except those referred to the investigative jurisdiction of other pre-trial investigation bodies, and correspondingly the investigative jurisdiction of Security Service of Ukraine (SSU) bodies is defined by Part 2, of the Economic Security Bureau of Ukraine (ESBU) – by Part 3, of State Bureau of Investigation (SBI) bodies – by Part 4, and of the National Anti-Corruption Bureau of Ukraine (NABU) – by Part 5 of Article 216 of the CPC.

The investigating judge is convinced that the mention in Article 33-1 of the CPC of the subject-matter jurisdiction of the HACC exclusively in the presence of at least one of the conditions provided for precisely by Part 5 of Article 216 of the CPC means that in case pre-trial investigation in a criminal proceeding is conducted by any other investigative body than NABU, such are not subject to the jurisdiction of the HACC. Any other interpretation of such provision deprives of any sense the very mention of Part 5 of Article 216 of the CPC, and also creates legal uncertainty, as it would enable pre-trial investigation bodies other than NABU arbitrarily and at their own discretion at any time based solely on formal criteria to refer to the HACC any criminal proceedings, of which there are currently hundreds of thousands in Ukraine, which would lead to the impossibility of the HACC administering effective justice, precisely to prevent which such provision exists.

Moreover, the circumstances set forth in the notices of suspicion to Boguslayev O.V. and Boguslayev V.O. regarding the commission by them of criminal offenses provided for by Part 3 of Article 209 of the CC and Part 5 of Article 191 of the CC do not contain any condition of subject-matter jurisdiction of the HACC provided for by paragraphs 1–3 of Part 5 of Article 216 of the CPC; therefore, the complainant's references to the alleged possession by Boguslayev V.O. in 2006–2019 of the status of a People's Deputy of Ukraine are completely artificial.

Article 6 of the 1950 Convention for the Protection of Human Rights and Fundamental Freedoms determines that everyone is entitled to a fair and public hearing of his case within a reasonable time by an independent and impartial tribunal established by law. According to the established case law of the European Court of Human Rights (ECtHR) regarding the application of Article 6 of the Convention in the criminal procedure aspect, «a court which, according to the effective provisions of domestic law, does not have jurisdiction to try the defendant, is 'not established by law' within the meaning of Article 6 § 1», which reflects the principle of the rule of law inherent in the system established by the Convention and the Protocols thereto as a whole («Jorgic v. Germany», § 64; «Richert v. Poland», § 41). A body not established in accordance with the will of the legislature will inevitably be devoid of the legitimacy that is necessary in a democratic society («Lavents v. Latvia», § 114; «Gorgiladze v. Georgia», § 67; «Kontalexis v. Greece», § 38).

The investigating judge notes that criminal proceeding No. 22017000000000272 dated 6 July 2017 does not belong to the subject-matter jurisdiction of the HACC; therefore, consideration of any applications, complaints and motions therein is outside the scope of powers of investigating judges of the HACC and would contradict the requirement regarding the consideration of a case by a tribunal established by law.

At the same time, the CPC does not regulate the procedure for actions of an investigating judge in case of submission of a complaint or application that does not belong to the jurisdiction of such court.

However, pursuant to Part 6 of Article 9 of the CPC, in cases where the provisions of this Code do not regulate or ambiguously regulate issues of criminal proceedings, the general principles of criminal proceedings defined by Part 1 of Article 7 of this Code are applied, which in particular include

disposition, the content of which is disclosed in Article 26 of the CPC, namely that the parties to criminal proceedings are free to exercise their rights within the limits and in the manner provided for by this Code. The investigating judge, the court in criminal proceedings resolve only those issues that are submitted for their consideration by the parties and referred to their powers by this Code.

3.4. In view of the above, the investigating judge considers that proceedings regarding the filed complaint should be closed. At the same time, the provisions of Article 309 of the CPC do not provide for the possibility of appealing such a ruling of an investigating judge during pre-trial investigation.

Guided by Articles 33-1, 216, 303, 309, 369–372, 532 of the CPC, the court

RULED:

To close the proceedings.

The ruling is not subject to appeal and takes legal effect from the moment of its pronouncement.

Investigating Judge Dubas V.M._____